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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON

Defendant.

**STIPULATED MOTION FOR
DISCOVERY PROTECTIVE ORDER**

Case No. 251403576

JUDGE TONY F. GRAF

The parties respectfully request that the Court issue a protective order governing the disclosure of discovery material produced to the defendant, through his counsel, and further restricting the disclosure of personal identifying information of witnesses.

Utah Rule of Criminal Procedure 16(d) allows the parties to “impose reasonable limitations on further dissemination of sensitive information” provided in discovery “to protect victims and witnesses.” Utah R. Crim. P. 16(d). It states:

(1) The prosecutor or defendant may impose reasonable limitations on the further dissemination of sensitive information otherwise subject to discovery to prevent improper

use of the information or to protect victims and witnesses from harassment, abuse, or undue invasion of privacy, including limitations on the further dissemination of recorded interviews, photographs, or psychological or medical reports.

(2) Upon a sufficient showing the court may at any time order that discovery or inspection be denied, restricted, or deferred, that limitations on the further dissemination of discovery be modified or make such other order as is appropriate.

The discovery in this matter is voluminous and complex. While the State has taken, and will continue to take, every reasonable effort to redact discovery materials, pursuant to Article I, Section 28, of the Utah Constitution, and Utah Code Section 77-38-3(12), 77-38-6, governing victim and witness rights¹, redaction of every file is not feasible due to the volume of material and the format of some material, including video and audio files.

Therefore, the parties stipulate and ask that the Court issue a protective order as follows:

1. Limitations on use of discovery materials.
 - a. Information provided in discovery shall not be shared with any person or entity outside of the defense team but may be reviewed by potential witnesses in the presence of a member of the defense team as deemed necessary by counsel.

¹ Article I, Section 28 of the Utah Constitution, states that victims have the right “to be treated with fairness, respect, and dignity, and to be free from harassment and abuse throughout the criminal justice process.”

Section 77-38-6 states,

A defendant may not compel any witness to a crime, at any court proceeding, ... to testify regarding the witness’s address, telephone number, place of employment, or other locating information unless the witness specifically consents or the court orders disclosure on finding that a compelling need for the information exists.

Section 77-38-3(12) states,

- (a) A victim’s address, telephone number, and victim impact statement maintained by a peace officer [or] prosecuting agency” are classified as protected under Subsection 63G-2-305.
- (b) The victim’s address, telephone number, and victim impact statement is available only to the following persons or entities in the performance of their duties: [list does not include the defendant or defense team].

- b. Information provided in discovery may be shared with attorneys with whom Defendant's counsel of record deems necessary to consult, as well as the consulting attorneys' respective office staff as necessary to facilitate the consultation. Consulting attorneys and their staff shall not share or disclose discovery information in any way.
 - c. "Defense team," as used in this paragraph, includes counsel of record and their office staff, defense investigators and experts and their respective office staff, and the Defendant.
 - d. This paragraph is further limited by paragraph 2, below.
2. Limitations on use of personal identifying information.
- a. "Personal identifying information" includes dates of birth, social security numbers, addresses, phone numbers, and email addresses which are shared through discovery. "Personal identifying information" does not include the names of witnesses.
 - b. Defense counsel may not share personal identifying information of witnesses with anyone except those necessary to carry out the defense investigation and preparations for trial.
 - c. Personal identifying information may be shared and viewed by attorneys of record, investigators, and their office staff as necessary to prepare for trial, conduct investigation, and prepare subpoenas or other legal process related to the defense in this case.

- d. Personal identifying information may not be shared with the Defendant or any person outside the defense team, as identified in paragraph 1. Personal identifying information may not be shared with consulting attorneys or their staff. This limitation does not preclude the defense team from sharing the content of witness statements, witness involvement, or witness names with Defendant.

Dated October 13, 2025.

/s/ Ryan McBride
Deputy Utah County Attorney

/s/ Richard Novak
Attorney for Defendant

CERTIFICATE OF SERVICE

I hereby certify that on October 13, 2025, I caused the foregoing to be served electronically to all attorneys of record, as indicated on the Return of Electronic Filing, via the court's electronic filing system. *See* Utah Rule of Civil Procedure 5(b)(3)(A).

/s/ Ryan McBride